

**BEFORE THE OFFICE OF ADMINISTRATIVE HEARINGS
STATE OF NORTH CAROLINA**

COUNTY OF PINE HOLLOW

In the Matter of:

MAYA OKAFOR, a minor, by and through the
parent, GRACE OKAFOR,

Petitioner,

v.

PINE HOLLOW COUNTY BOARD OF
EDUCATION,

Respondent.

Case No. _____

**DUE PROCESS COMPLAINT
NOTICE**

20 U.S.C. § 1415(b)(7)

34 C.F.R. § 300.508

Date: June 1, 2026

I. INTRODUCTION

1. Petitioner Maya Okafor (“Student”) is a student who is eligible for special education and related services under the category of Speech or Language Impairment (initially found eligible on February 14, 2020), and who attends Cedar Ridge Middle School in the Pine Hollow County Schools, for which the Pine Hollow County Board of Education is the responsible local educational agency and the respondent here (“District”). This due process complaint is brought on Student’s behalf by the parent, Grace Okafor (“Parent”). Petitioner and the Parent are represented by Renée Castillo of Castillo Education Law PLLC.

2. The District has denied Student a free appropriate public education (“FAPE”) by failing to implement the services the operative individualized education program (“IEP”) requires; by failing to evaluate Student appropriately; and by refusing to fund an independent educational evaluation at public expense without filing its own due process complaint. Petitioner requests an impartial due process hearing on the problems stated in this complaint.

II. CONTACT AND RESIDENCE INFORMATION

34 C.F.R. § 300.508(b)(1)–(3).

3. Student was born on April 19, 2013, resides with the Parent at 72 Laurel Court, Pine Hollow, NC 27999, and is enrolled at Cedar Ridge Middle School. The Parent may be reached at grace.okafor@example.com and (555) 010-2088.

III. STATEMENT OF FACTS

4. On May 6, 2025, the District's speech-language pathologist administered the CELF-5 to Student; the evaluation is dated May 6, 2025.

5. On August 21, 2025, the IEP team met for Student's annual review; the IEP provides speech-language therapy at 60 minutes per week, individual, from August 21, 2025 to August 20, 2026; the team declined the Parent's request that the District assess written expression; and the Parent signed, writing that she still wanted written expression tested.

6. In the week of September 22, 2025, individual speech-language sessions ended when the provider's caseload was reassigned; the log records 30 minutes in a group of 3 for that week.

7. In the week of October 27, 2025, the log records no speech-language service for the week (provider absent; no make-up scheduled).

8. On November 10, 2025, the Parent requested in writing an independent educational evaluation in speech-language and written expression at public expense, stating disagreement with the evaluation of May 6, 2025.

9. In the week of November 24, 2025, the log records no speech-language service for the week (holiday week).

10. On December 4, 2025, the District issued a prior written notice declining to fund an independent educational evaluation, stating that it considers the May 6, 2025 evaluation appropriate and will assess written expression in the spring 2026 reevaluation window.

11. On January 14, 2026, the Parent wrote to the District that Student reported her speech sessions were with two other students and half as long, and asked for the service log and when individual sessions would resume.
12. In the week of January 19, 2026, the log records no speech-language service for the week (provider absent; no make-up scheduled).
13. On January 21, 2026, the District sent the speech-language service log and wrote that the provider's caseload was reassigned in September and individual sessions have not been available since; it expects to post a second SLP position this spring.
14. On January 30, 2026, the service log period ended; its summary states 22 weeks, 4 at 60 minutes individual, 15 at 30 minutes group, 3 with no service, and 690 total minutes delivered against 1,320 required by the IEP for 22 weeks.
15. On February 9, 2026, the Parent wrote that the log shows 690 minutes delivered against 1,320 required, asked the District to make up the missed minutes and restore individual sessions now, and noted no response about the independent evaluation beyond the December 4 notice.

IV. STATEMENT OF THE PROBLEMS

A. Failure to implement the services the IEP requires

34 C.F.R. § 300.323.

16. The IEP dated August 21, 2025 provides for speech-language therapy of 60 minutes per week, individual, by a licensed speech-language pathologist in the speech room, from August 21, 2025 to August 20, 2026.
17. The District's service log for August 25, 2025 through January 30, 2026 records 60 minutes, individual, in each of the first four weeks and, from the week of September 22, 2025, 30 minutes in a group of 3, noting "provider caseload reassigned; individual slot unavailable". It records no service in the weeks of October 27, 2025, November 24, 2025 and January 19, 2026, with "no make-up scheduled" for the two weeks the provider was absent.

18. The log's summary states 22 weeks in the period, 4 at 60 minutes individual, 15 at 30 minutes group, 3 with no service, 690 total minutes delivered, and 1,320 total minutes required by the IEP for 22 weeks. It notes that individual sessions ended the week of September 22, 2025 when the provider's caseload was reassigned, and that the IEP was not amended.

19. On January 14, 2026, after Student reported that her speech sessions were now with two other students and half as long, the Parent asked the District for the service log and when individual sessions would resume. On January 21, 2026, the District sent the log and wrote that the pathologist's caseload "was reassigned in September and individual sessions have not been available since". On February 9, 2026, the Parent asked in writing that the District make up the missed minutes and restore individual sessions.

B. Failure to evaluate Student appropriately

34 C.F.R. §§ 300.301–300.311.

20. The District's speech-language evaluation is dated May 6, 2025; on the CELF-5 administered that day Student obtained a Core Language Score of 71 (2nd percentile), an Expressive Language Index of 68 and a Receptive Language Index of 79.

21. At the August 21, 2025 IEP meeting the Parent asked that the District assess written expression, "which was not assessed in May 2025". The team added 45 minutes per week of specially designed instruction in written expression. It declined the request, on the basis that the May 6, 2025 evaluation is current and the added instruction addresses the concern, and told the Parent she may request an independent educational evaluation if she disagrees with the District's evaluation. The Parent signed the IEP on August 21, 2025 and wrote: "I agree with the services. I still want written expression tested."

C. Refusal to fund an independent educational evaluation

34 C.F.R. § 300.502(b).

22. On November 10, 2025, the Parent wrote that she disagreed with the May 6, 2025 evaluation because "It did not test written expression" and because Student's language scores "do

not match what I see at home”, and requested “an independent educational evaluation in speech-language and written expression at public expense”.

23. By prior written notice dated December 4, 2025 the District declined to fund an independent educational evaluation, stating that it considers the May 6, 2025 evaluation appropriate and will assess written expression itself during the spring 2026 reevaluation window. The notice lists as the other option considered “Funding an independent evaluation in speech-language only”, rejected “because the district evaluation in that area is current”. The District did not file for a hearing. On February 9, 2026, the Parent wrote that she had not received a response about the independent evaluation beyond the December 4 notice.

V. PROPOSED RESOLUTION

34 C.F.R. § 300.508(b)(6).

24. The Parent proposes the following resolution:

- (a) compensatory speech-language therapy, delivered individually, equal to the individual therapy minutes the IEP required and the District did not deliver individually from September 22, 2025 to the date of the order;
- (b) an independent educational evaluation in speech-language and written expression at public expense; and
- (c) restoration of individual speech-language therapy at 60 minutes per week as the IEP requires.

25. The Parent reserves the right to seek reasonable attorneys’ fees and costs under 20 U.S.C. § 1415(i)(3)(B).

VI. ADDITIONAL INFORMATION REQUIRED IN NORTH CAROLINA

26. Basis of the complaint, in the categories Form H-06E lists: the evaluation of Student, and the denial of a free appropriate public education.

Dated: _____

Respectfully submitted,

Renée Castillo
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CERTIFICATE OF SERVICE

Counsel for Petitioner and the Parent certifies that on the date written below a true and complete copy of this Due Process Complaint Notice was served on the Superintendent of the Pine Hollow County Board of Education; and the North Carolina Department of Public Instruction, 6356 Mail Service Center, Raleigh, NC 27699-6356, by the method indicated below.

Method of service: ☐ U.S. mail ☐ Hand delivery ☐ Other: _____

Name and address of each person served:

Dated: _____

Renée Castillo
Attorney for Petitioner and the Parent